Natural Law and Positive Law

- **Natural law:** moral principles understood as grounded in human nature and reason.
- **Positive law:** law recognised as legally valid within a legal system.
- Positive law includes both **statutes** and **common law**.

Aquinas, Summa theologiae I-II, q. 100, a. 3, reply to objection 1
UK Supreme Court: Lord Sales, Statutory Interpretation (2022)

Aquinas: Love Your Neighbour

- Aquinas treats love of God and neighbour as **first general principles of natural law**.
- Neighbourly love means willing another person's good; it does not require affection for everyone.
- For Aquinas, a principle can be both **religiously revealed** and **naturally knowable**.

Aquinas, Summa theologiae I-II, q. 100, a. 3, reply to objection 1

Lord Atkin: The Neighbour Principle

- **Donoghue v Stevenson (1932):** the House of Lords was the highest appellate court.
- Lord Atkin linked love of one's neighbour with a legal duty to take reasonable care against foreseeable injury.
- **Donoghue won her appeal, 3-2:** the pleaded facts could establish the manufacturer's duty. Facts and damages were still unresolved.

Donoghue v Stevenson [1932] AC 562, especially p. 580

A Maiori ad Minus: A Teaching Analogy

- **Greater moral demand:** love your neighbour.
- **Lesser requirement:** at least avoid harming your neighbour.
- This can illustrate **a fortiori** reasoning, from the greater to the lesser.
- This is our analytical comparison. Atkin did not label it this way, and moral reasoning alone does not create a legal duty.

Donoghue v Stevenson [1932] AC 562, especially p. 580

Statutory Interpretation or Common Law?

- If a court explains what a statute means, it is **statutory interpretation**.
- If it develops an independent judge-made rule, it may be developing **common law**.
- **Both** can produce binding precedents. The reasoning method does not determine the source of law.

UK Supreme Court: Lord Sales, Statutory Interpretation (2022)

Ratio Decidendi: What Binds?

- **Ratio decidendi:** the legal rule necessary for deciding the case on its material facts.
- It normally binds lower courts within the relevant judicial hierarchy.
- Its scope depends on the facts and issues decided. Not every sentence in a judgment is binding.

Obiter Dictum: What Persuades?

- **Obiter dictum:** a judicial observation not necessary for the decision.
- It is generally **persuasive**, rather than binding on lower courts.
- A moral or natural-law idea does not become binding common law merely because a judge mentions it.

UK Supreme Court: Lord Sales, Default Rules in the Common Law

Three Questions to Keep Separate

- **Starting point:** what moral principle or existing legal rule supports the argument?
- **Legal source:** is the result an interpretation of a statute or a common-law rule?
- **Precedential force:** is it ratio decidendi or obiter dictum, and what is the court's rank?
- A natural-law argument does not authorise a court to disregard an applicable statute.

UK Supreme Court: Lord Sales, Statutory Interpretation (2022)
UK Supreme Court: Lord Sales, Default Rules in the Common Law